



March 23, 2026

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U.S. Department of Homeland Security
U.S. Citizenship and Immigration Services
California Service Center
2642 MICHELLE DRIVE
TUSTIN, CA 92780

U.S. Citizenship
and Immigration
Services



WAC2690017021

Form I-539N, Application to Extend/Change
Nonimmigrant Status

REQUEST FOR EVIDENCE

Applicant(s): Nithin Jose

IMPORTANT: THIS NOTICE CONTAINS YOUR UNIQUE NUMBER. THE ORIGINAL NOTICE MUST BE SUBMITTED WITH THE REQUESTED EVIDENCE.

You are receiving this notice because U.S. Citizenship and Immigration Services (USCIS) requires additional evidence to process your form. Please provide the evidence requested below. Include duplicate copies if you are requesting consular notification.

Your response must be received in this office by April 27, 2026.

Please note that you have been allotted the maximum period allowed for responding to a Request for Evidence (RFE). The time period for responding cannot be extended. Title 8, Code of Federal Regulations (8 CFR) § 103.2(b)(8)(iv). Because many immigration benefits are time sensitive, you are encouraged to respond to this request as early as possible, but no later than the deadline provided above. If you do not respond to this notice within the allotted time, your case may be denied. The regulations do not provide for an extension of time to submit the requested evidence.

You must submit all requested evidence at the same time. If you submit only some of the requested evidence, USCIS will consider your response a request for a decision on the record. 8 CFR § 103.2(b)(11).

If you submit a document in any language other than English, the document must be accompanied by a full and **complete** English translation. The translator must certify that the translation is accurate and he or she is competent to translate from that language to English. **If you submit a foreign language translation in response to this request for evidence, you must also include a copy of the foreign language document.**

Processing of your Form I-539N will resume upon receipt of your response. If you have not heard from USCIS within **60 days of responding**, you may contact the USCIS Contact Center at **1-800-375-5283**. If you are hearing impaired, please call the USCIS Contact Center TDD at **1-800-767-1833**.

REASON FOR CHANGE OF STATUS TO B-2

USCIS acknowledges receipt of your letter that states "My employment with Meta (Facebook) was terminated on September 8, 2025, and due to the current job market, I have been unable to secure new employment. I require additional time to manage my affairs including selling my home and arrange for my departure from the United States." Although you submitted a reason for the requested change of status, the reason provided appears inconsistent and is insufficient to show that you will engage only in activities specifically consistent with the B nonimmigrant classification as a temporary visitor for pleasure.

Further, you have not explained or provided evidence as to why additional time beyond the expiration of your prior H-1B nonimmigrant status is necessary to complete these activities. Furthermore, USCIS record shows a Form I-129, Petition for a Nonimmigrant Worker, H-1B Classification IOE9654263844 was filed on your behalf by OPPLANE INC on December 10, 2025. The record appears to indicate that you filed the present application following the termination of your H-1B employment while awaiting the opportunity to secure new employment. This further supports the assertion that you may not have a bona fide intent to engage in the activities authorized under B-2 status, as required. Applicants must demonstrate a genuine intent to participate in the activities for which the status is sought, rather than merely seeking to extend their stay in the United States while awaiting other opportunities.

As noted in the precedent decision of Matter of Healy and Goodchild, 17 I&N. Dec 22 (BIA 1979), the B nonimmigrant category is not a catch-all classification to be used for whatever purpose an alien wishes, but instead is a defined classification, with specific requirements.

Therefore, you have not established that your proposed activities are consistent with the requirements of the B-2 nonimmigrant classification.

As such, provide a letter that explains in detail the following:

- A detailed letter explaining the specific arrangements you intend to make in order to conclude your stay in the United States, as referenced in your stated reason for requesting a change of status to B-2 status.
- A detailed letter explaining the specific arrangements you have already initiated and completed to conclude your stay in the United States with supporting evidence.
- A written explanation as to why you were unable to complete the process of wrapping up your personal affairs prior to the expiration of your H-1B status and during the discretionary 60-day grace period.

INTENT TO DEPART U.S.

Submit evidence to establish that you have made arrangements to depart the United States upon completion of your temporary stay. Such evidence may include an airline ticket or other proof of your departure transportation arrangements from the United States.

FOREIGN RESIDENCE

The Immigration and Nationality Act (INA) section 101(a)(15)(B) requires that a nonimmigrant visitor for pleasure, have a residence in a foreign country which he or she have no intention of abandoning. Submit documentation to establish that you have a foreign residence that you

have no intention of abandoning. Such evidence may include, but is not limited to:



- Recent telephone bills and/or utility bills at your place of foreign residence;
- Residence Permit (government issued identity card) establishing foreign residence;
- Letter from government authorities on official letterhead with government seal showing your foreign residence;
- Mortgage statements or current rental agreements relating to your foreign residence, to include rental receipts;
- A letter from your foreign employer indicating that you are permitted to be away from work for the length of your desired stay, and that your foreign position is being held for your return;
- A letter from your foreign bank, on the bank's letterhead with the bank's certification signature, which verifies your foreign residence address, bank account number, and shows an established relationship with the bank (e.g., bank account opened for 3 months).

In addition, submit a statement and evidence detailing the effect your extended stay in the United States will have on your foreign residence.

This request for evidence pertains to your residence outside of the United States and not your temporary residence in the United States, and USCIS will consider how much weight to give to the evidence depending on all the circumstances/facts presented.

PLACE THE ATTACHED COVERSHEET AND THIS ENTIRE LETTER ON TOP OF YOUR RESPONSE.

Sincerely,

Carrie M. Selby
Acting Associate Director, Service Center Operations
Officer: XW1069

COVERSHEET
SCANNING REQUIRED
PLEASE RETURN THE REQUESTED INFORMATION AND
ALL SUPPORTING DOCUMENTS **WITH**
THIS PAGE ON TOP TO:

USCIS TSC
Attn: RFE/NOIT/NOIR/NOID RESPONSE
6046 N Belt Line Rd. STE 172
Irving, TX 75038-0015

Please check the appropriate box regarding if there is a new Form G-28, Notice of Entry of Appearance as Attorney or Accredited Representative, additional fees, additional forms, etc. Please place the new Form G-28, additional fees, additional forms directly under this sheet.

Yes, there is:

☐

A New G-28

☐

Additional Fees

☐

Additional Forms

☐

Other:

If you have moved, write your current address in the blank area below. Please be sure to write clearly.

(Select appropriate check box)

☐

Applicant/Beneficiary

☐

Petitioner

New Address:

As required by Title 8, Code of Federal Regulations (8 CFR) section 265.1, *Reporting change of address*: Except for those exempted by section 263(b) of the Act, all aliens in the United States required to register under section 262 of the Act must report each change of address and new address within 10 days of such change in accordance with instructions provided by USCIS.

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JOSE, NITHIN